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PURCHASE AND SALE CONTRACT ("Contract")
(1776 & 1501 McGrathiana Parkway, Lexington, Fayette County, Kentucky)

This Contract is entered into by Lexington-Fayette Urban County Government, an urban county government of the Commonwealth of Kentucky ("**Seller**"), and Amazon.com Services LLC, a Delaware limited liability company, and/or its assigns ("**Purchaser**").

IN CONSIDERATION of the promises and mutual covenants herein set forth, Seller and Purchaser agree to the purchase and sale of the Property (defined below), in accordance with the following terms and conditions:

1. Property. (a) The property will be comprised of the following (the "**Property**"): Land totaling approximately 19.61 acres located in Fayette County, Kentucky (the "**Land**"), as more particularly described on **Exhibit A**, together with any and all improvements situated on the Land (the "**Improvements**"); and all access rights of Seller, if any, in and to any and all appurtenances, strips or gores, roads, easements, streets, alleys, drainage facilities and rights-of-way bounding the Land; all utility capacity, utilities, water rights, licenses, permits, entitlements, and bonds, if any, and all other rights and benefits attributable to the Land; and all rights of ingress and egress thereto (collectively, the "**Additional Interests**"); all transferable consents, authorizations, variances or waivers, licenses, permits and approvals from any governmental or quasi-governmental entity in connection with the Land or the Improvements held by or granted to Seller, its predecessors in title, and/or the agents thereof with respect to the Land or the Improvements (collectively, the "**Permits**"); all right, title and interest of Seller in and to all site plans, surveys, soil and substratus studies, and engineering and architectural drawings, plans and specifications, in Seller's possession or control, relating to the Land (the "**Plans**", and collectively with the Permits, the "**Intangible Property**"); all equipment and other personal property owned by Seller located on and exclusively used in connection with the operation of the Land and Improvements (collectively, the "**Personal Property**"); and all written service and maintenance contracts and other written contracts, if any, relating to the Property (collectively, the "**Service Contracts**") that have been approved by Purchaser during the Inspection Period (defined below) (collectively, the "**Approved Service Contracts**").

(b) Subject to Section 6 of this Contract, Purchaser acknowledges that Purchaser has made thorough inspections and investigations of the Property and Purchaser agrees to take title to the Property "AS-IS, WHERE IS, AND WITH ALL FAULTS" and in the condition existing as of the date of this Contract, subject to reasonable use, ordinary wear and tear, and without any reduction in or abatement of the Purchase Price. By the end of the Inspection Period (defined below), Purchaser has undertaken all such investigations of the Property as Purchaser deems necessary or appropriate under the circumstances as to the status of the Property and the existence or nonexistence of curative action to be taken with respect to any hazardous or toxic substances on or discharged from the property, and based upon same, Purchaser is and will be relying strictly and solely upon such inspections and examinations and the advice and counsel of its own consultants, agents, legal counsel, and officers.

(c) Neither party to this Contract is relying on any statement or representation not expressly stated in this Contract. Purchaser specifically confirms and acknowledges that in entering into this Contract, Purchaser has not been induced by, and has not relied upon, whether express or implied, warranties, guaranties, promises, statements, inducements, representations, or information pertaining to the Property or its uses, the physical condition, environmental condition, state of title, income, expenses, or operation of the Property, or any other matter or thing with respect thereto, written or unwritten, whether made by Seller or any agent, employee, or other representative of Seller, or any broker or any other person representing (or purporting to represent) Seller, which are not expressly set forth in this Contract. Seller shall not be liable for or bound by any written or unwritten statements, representations, warranties, brokers' statements, or other information pertaining to the Property furnished by Seller, any broker, any agent, employee, or other actual (or purported) representative of Seller, or any person, unless and only to the extent the same are expressly set forth in this Contract.



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2. Purchase Price. The purchase price for the Property will be approximately Four Million Four Hundred Twelve Thousand Two Hundred Fifty and No/100 Dollars (\$4,412,250.00) (the "**Purchase Price**"), subject to any prorations set forth in Section 12 below. The Purchase Price will be payable to Seller in cash or by wire transfer of good funds to Title Company for payment to Seller at Closing (defined below), with the exact Purchase Price to equal the product of Two Hundred Twenty Five Thousand and No /100 Dollars (\$225,000.00) multiplied by the total number of acres contained within the Land as certified in the Survey (defined below).

3. Earnest Money and Independent Consideration.

(a) Earnest Money. Within seven (7) business days after the Effective Date, Purchaser will deposit with Chicago Title Insurance Company, 701 5th Avenue, Suite 2700, Seattle, Washington 98104, Attention: Darnella Ward, Email: Darnella.Ward@ctt.com ("**Title Company**"), the sum of One Hundred Thousand and No/100 Dollars (\$100,000.00) as earnest money hereunder (the "**Earnest Money**"). The Earnest Money shall then be released from the Title Company to the Department of Finance of the Lexington-Fayette Urban County Government ("**Escrow Holder**") within three (3) business days, who shall hold said funds in a separate and restricted fund pending Closing. The entire Earnest Money will be applied towards the Purchase Price at Closing or will be otherwise held and disbursed as herein provided.

(b) Independent Consideration. As independent consideration for the rights granted to Purchaser, Purchaser has paid to Seller the sum of One Hundred and No/100 Dollars (\$100.00) as part of the Earnest Money, the receipt and sufficiency of which are hereby acknowledged (the "**Independent Consideration**"). The Independent Consideration is non-refundable and will be applied against the Purchase Price at Closing.

4. Due Diligence Documents. The following documents will be delivered to Purchaser:

(a) Title Commitment. During or prior to the Inspection Period, Purchaser will, at Purchaser's expense, order a current commitment from Title Company (the "**Title Commitment**") committing the Title Company to issue an ALTA owner's policy of title insurance with extended coverage in the full amount of the Purchase Price (the "**Title Policy**"). The Title Policy shall insure good and marketable fee simple title to the Property in Purchaser, in the amount of the Purchase Price, subject only to the Permitted Exceptions (defined below).

(b) Survey. Within seven (7) days after the Effective Date, Seller will deliver to Purchaser, Purchaser's legal counsel, and Title Company a true, complete and correct copy of Seller's most recent survey of the Property, if any (the "**Existing Survey**"). Purchaser may, at Purchaser's option and expense, commission a new ALTA survey or updated Existing Survey conforming with ALTA standards (the "**Survey**"). The Survey will be certified to Seller, Purchaser and Title Company and will show the total number of acres comprising the Land. For purposes of the property description to be included in the Deed (defined below), Title Policy (defined below) and other documents to be delivered pursuant to Sections 10 and 11, the field notes prepared by the surveyor on the Survey will control any conflicts or inconsistencies and will be incorporated upon completion and included as the property description in the Deed and the Title Policy.

(c) Documents. Within seven (7) days after the Effective Date, Seller will deliver to Purchaser true, correct, and complete copies of all documents pertaining to the development, ownership and/or operation of the Property, including but not limited to, any leases, licenses or other agreements permitting any party to possess, occupy or enter into all or any portion of the Property; operating statements for the last 3 calendar years (including year to date results for the current year); service contracts; existing title commitments or policies; drawings or plans and specifications; soils reports; feasibility or engineering studies; environmental reports, studies, assessments, and notices; any documentation regarding water, sanitary sewer, gas and other utilities serving the Property; utility bills for the last three (3) years; a current rent roll in form reasonably satisfactory to Purchaser; aged receivables report for the Property; economic development incentives, subsidies or other public financing/assistance documents relating to the Property; agreements that specify the contractors, subcontractors, labor, or vendors that can perform

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work at the Property; land use approvals, licenses, permits, and final certificates of occupancy relating to any buildings located on the Land; evidence of zoning for the Property; copies of all property and liability insurance policies for the Property; and ad valorem tax notices and receipts for the last three (3) years, together with the tax bill for the current year (collectively, the "**Documents**"). The parties understand that Seller has delivered all documents within its possession required under this subsection (4)(c) prior to execution of this Contract.

(d) Review of Title, Survey, and Documents. Purchaser will have until 11:59 p.m., Pacific Time, on that date which is ninety (90) days after the Effective Date ("**Title Review Period**"), to review and approve the matters reflected in the Title Commitment and Survey. If Purchaser determines that the Title Commitment and Survey reflect or disclose any defect, exception, or other matter affecting the Property unacceptable to Purchaser in its sole and absolute discretion, then Purchaser will notify Seller of Purchaser's objections prior to the expiration of the Title Review Period ("**Objection Notice**"). If Seller fails to cure Purchaser's objections within twenty (20) days after Seller's receipt of the Objection Notice (the "**Seller's Cure Period**"), Purchaser may, as its sole and exclusive remedy, terminate this Contract by providing written notice of termination to Seller within fourteen (14) days after the expiration of Seller's Cure Period, whereupon this Contract will be terminated, Seller will retain the Independent Consideration, and the Earnest Money will be refunded to Purchaser, and thereafter neither Seller nor Purchaser will have any continuing rights or obligations other than those obligations which expressly survive termination of this Contract. If Purchaser fails to terminate this Contract within that period, Purchaser will be deemed to have approved and waived any objection to the matters contained in the Title Commitment, Survey, and Documents. If Title Company issues a supplement or amendment to the Title Commitment showing additional title exceptions (each, an "**Amended Report**"), Purchaser will have ten (10) days from the date of receipt of each Amended Report and a copy of each document referred to in the Amended Report in which to give written notice (each, a "**Supplemental Title Notice**") to Seller of its objection to any additional matter affecting the Property that is unacceptable to Purchaser, in Purchaser's sole and absolute discretion, shown in such Amended Report. If Seller fails to cure Purchaser's objections within twenty (20) days after Seller's receipt of the Supplemental Title Notice (each, a "**Seller's Supplemental Title Cure Period**"), Purchaser may elect, as its sole and exclusive remedy, to terminate this Contract by providing written notice of termination to Seller within ten (10) business days after the expiration of each Seller's Supplemental Title Cure Period, whereupon this Contract will be terminated, Seller will retain the Independent Consideration, and the Earnest Money will be refunded to Purchaser, and thereafter neither Seller nor Purchaser will have any continuing rights or obligations other than those that expressly survive termination of the Contract. If Purchaser fails to terminate this Contract within such period, Purchaser will be deemed to have approved and waived any objection to the additional matters contained in such Amended Report. All matters shown under Schedule B – Section II of the Title Commitment, any Amended Report and by the Survey to which Purchaser has not objected or Purchaser has waived as provided herein will be considered to be "**Permitted Exceptions**." Notwithstanding the foregoing, under no circumstances will Purchaser be required to object to any monetary liens, any existing liens reflected in the Title Commitment, or other matters shown on Schedule "B – Section I" thereto, all of which (except for the lien or liens for taxes not yet due and payable) will be released or satisfied by Seller at its expense prior to Closing.

5. Feasibility Contingency.

(a) The obligations of Purchaser under this Contract and consummation of Closing are, in Purchaser's sole and absolute discretion, subject to Purchaser performing due diligence, reviewing the Documents, completing an inspection of the Property, and determining, in Purchaser's sole and absolute discretion, that it is feasible for Purchaser to own and operate the Property in a manner and upon terms and conditions satisfactory to Purchaser (collectively, "**Due Diligence Activities**"). Purchaser will have until 11:59 p.m., Pacific Time, on that date which is One Hundred Twenty (120) days after the Effective Date (as may be extended pursuant to Section 5(h) below, the "**Inspection Period**"), to perform such Due Diligence Activities as Purchaser may desire in its sole and absolute discretion, including, but not limited to, invasive testing, such as soil borings, installation of groundwater monitoring wells and collection of soil and groundwater samples, solely for the purposes of a Phase II environmental assessment. If Purchaser determines, based upon its performance of Due Diligence Activities, that it is not feasible

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for Purchaser to own and operate the Property, Purchaser may, as its sole and exclusive remedy, terminate this Contract by providing written notice of termination to Seller by the end of the Inspection Period, whereupon this Contract will be terminated, Seller will retain the Independent Consideration, and the Earnest Money will be refunded to Purchaser, and thereafter neither Seller nor Purchaser will have any continuing rights or obligations other than those obligations which expressly survive termination of this Contract. If Purchaser fails to terminate this Contract within the Inspection Period, Purchaser will be deemed to have approved and waived any objection to Closing which could have been made on account of the Due Diligence Activities. During the Inspection Period, Purchaser may file applications with applicable governing authorities for approval to plat or replat the Property for its planned development, and to obtain development commitments, entitlements, permits and approvals, all as may be deemed necessary by Purchaser in connection with its contemplated use and development of the Property (collectively, all of the foregoing commitments, entitlements, permits, and approvals are the "**Approvals**"), and Seller agrees to cooperate with Purchaser and execute such documents reasonably required in connection with the Approvals. Such Approvals will not impose any burden or be binding upon the Property prior to Closing, nor impose any cost or liability on Seller, except to the extent reasonably consented to by Seller.

(a) (b) Prior to any entry upon the Property by Purchaser, or its contractor, agent, employee, consultant, or other third party at Purchaser's direction (each, a "**Purchaser Consultant**"), Purchaser and any Purchaser Consultant entering the Property shall maintain, (i) Commercial General Liability including products and completed operations coverage, premises liability, personal injury (employees' exclusion deleted) \$1,000,000 per occurrence, \$2,000,000 aggregate; Bodily Injury and Property Damage, \$2,000,000 annual aggregate, with coverage written on an "occurrence" basis; (ii) Comprehensive Automobile Liability including owned, non-owned and hired vehicles coverage, \$1,000,000 per occurrence Bodily Injury and Property Damage Liability (Combined Single Limit); (iii) Professional Liability ("**Errors and Omissions**") Insurance in the amount of \$1,000,000 per occurrence, \$2,000,000 annual aggregate; (iv) Worker's Compensation meeting statutory limits required by applicable Workers' Compensation Law for liability arising under any other applicable Act or governmental enactment for the protection of employees, and (v) Employer's Liability \$1,000,000 each coverage. Any Purchaser Consultant that seeks to perform invasive testing or collect samples from the Property shall also maintain pollution liability insurance with limits of not less than \$2,000,000 and shall provide evidence that Seller is named as an additional insured on such policy prior to entering the Property. All policies shall name Seller as an additional insured on a primary and noncontributory basis, all in such forms underwritten by an insurance company satisfactory to Seller and with an A.M. Best Company rating of no less than Excellent (A or A-) and a financial size category of no less than VIII, as defined by the most current Best's Key Rating Guide. Seller acknowledges that Purchaser has furnished Seller with a Memorandum of Insurance ("MOI") (at www.amazon.com/moi). The referenced Memorandum of Insurance reflects Purchaser's insured status. For the avoidance of doubt, nothing in the preceding two sentences shall be construed as a waiver by Seller of its right to enforce the insurance requirements set forth herein, nor shall it be deemed an acknowledgment by Seller that the Memorandum of Insurance provided by Purchaser satisfies such requirements.

(c) Purchaser and Purchaser Consultants may enter upon the Property, at Purchaser's sole cost and expense, during the hours of 9 a.m. to 5 p.m., Monday through Friday, unless otherwise agreed to by the parties, for the sole purpose of making surveys, non-invasive testing (except as otherwise provided in subsection 5(a)), inspections, examinations, environmental inspections and other studies. Seller may from time to time, upon written notice to Purchaser, establish additional reasonable rules of conduct for Purchaser, as deemed necessary by Seller, so long as Purchaser approves of such rules of conduct in writing. Seller will cooperate with Purchaser to provide access to tenant spaces to the extent permitted under the applicable leases; provided, however, that Purchaser and Purchaser Consultants will not approach or otherwise communicate with any tenant except in casual conversation during the course of its due diligence and feasibility review where a representative of Seller is present, and will not in any event disclose to any tenant that Purchaser (or any other person or entity) is contemplating a purchase and/or development of the Property. Purchaser will indemnify and hold Seller harmless from and against any and all losses or costs incurred by Seller due to any injuries to persons or damage to the Land or Improvements resulting from the activities of Purchaser or Purchaser's Consultants on the Property; provided, however, that Purchaser shall not be

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obligated to indemnify or hold Seller harmless from any losses or costs arising out of or relating to (i) acts or omissions of Seller, its agents, or representatives; (ii) Hazardous Materials (defined below) not first placed on the Property by Purchaser or Purchaser Consultants; or (iii) mere discovery of conditions, facts, or circumstances that adversely affect (or may adversely affect) the value of the Property.

(d) If Purchaser fails to close its acquisition of the Property pursuant to this Contract, Purchaser will restore any material damage to the Land or Improvements caused by Purchaser or Purchaser Consultants to a reasonable equivalent of its pre-inspection condition within thirty (30) calendar days after termination of this Agreement. Provided, however, that if such damage cannot reasonably be cured within such thirty (30) day period, no default shall be deemed to exist so long as Purchaser commences the repair within such thirty (30) day period and thereafter diligently and continuously prosecutes such repair to completion. Should Purchaser fail to repair said damage within the period described above, Purchaser will reimburse Seller for any costs associated with any such restoration work within seven (7) calendar days after written demand from Seller for such costs, together with supporting invoices. Purchaser's obligations under this subsection 5(d) shall survive the termination of this Contract for a period of twelve (12) months.

(e) All Due Diligence Activities performed by Purchaser or Purchaser Consultants on the Property shall be at Purchaser's cost and expense. Purchaser shall not allow such entry or testing to result in liens, judgments, or other encumbrances being recorded against the Property. Nothing contained in this Contract shall be construed in any way as consenting to allow or authorizing Purchaser to subject the Property or the interest or estate of Seller to any lien or charge in respect of the work contemplated by this Contract. Purchaser shall promptly discharge or bond over of record any such lien, judgment, or other encumbrance at Purchaser's sole cost and expense. This Section shall survive the termination of this Contract.

(f) Prior to the expiration of the Inspection Period, Purchaser will provide to Seller a list of Leases (if any) and Service Contracts, if any, which Purchaser desires Seller to assign to Purchaser at Closing. Seller will assign the Approved Service Contracts at Closing. Seller will terminate all leases and all Service Contracts other than the Approved Service Contracts, effective at or prior to Closing.

(g) Prior to Closing, Seller will, at Seller's expense, remove all personal property from the Land except as may be otherwise expressly directed by Purchaser. If Seller fails to remove such personal property, then Purchaser may remove such personal property and dispose of it as Purchaser determines in its sole and absolute discretion. Seller will pay to Purchaser the costs and expenses incurred by Purchaser in any such removal and disposition. This Section will survive Closing.

(h) Purchaser may extend the Inspection Period for up to two (2) additional periods of forty-five (45) days each by (i) delivering to Seller written notice of Purchaser's election to extend the Inspection Period then in effect, prior to the expiration of the Inspection Period, and (ii) depositing with the Title Company the sum of Fifty Thousand and No/100 Dollars (\$50,000.00) ("**Extension Fee**") for each such extension prior to the expiration of the Inspection Period then in effect. The Extension Fee shall then be released from the Title Company to the Escrow Holder within three (3) business days, who shall hold said funds in a separate, restricted, and non-interest-bearing fund pending Closing. The Extension Fee will constitute additional Earnest Money and will be applied against the Purchase Price at Closing, but will be non-refundable to Purchaser (except in the event of a default by Seller) if Purchaser elects a discretionary termination of the Contract during the Inspection Period as provided in this Section.

(i) If Purchaser elects to proceed with Closing, then Purchaser will notify Seller in writing (the "**Approval Notice**") prior to the expiration of the Inspection Period. Unless the Approval Notice is previously delivered to Seller, upon the expiration of the Inspection Period, the Escrow Holder will disburse any Independent Consideration to Seller, will promptly return the Earnest Money to Purchaser and, provided that Seller is not in default hereunder beyond applicable cure periods, the Escrow Holder will disburse any Extension Fee on deposit to Seller, and all obligations of the parties under this Contract will terminate, excepting those obligations that

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expressly survive termination. In addition, if Purchaser notifies Seller during the Inspection Period that it does not intend to proceed with the acquisition of the Property (for any reason in Purchaser's sole and absolute discretion), then the Escrow Holder will disburse any Independent Consideration to Seller, promptly return the Earnest Money to Purchaser, and, provided that Seller is not in default hereunder beyond applicable cure periods, the Escrow Holder will disburse any Extension Fee on deposit to Seller, and all obligations of the parties under this Contract will terminate, except for those obligations that expressly survive termination of this Contract.

6. Representations, Warranties and Covenants of Seller. Seller hereby represents, warrants, and covenants to Purchaser as follows, which representations and warranties contained in this Section are made by Seller both as of the Effective Date and as of the Closing Date, will survive Closing and shall not be deemed to have merged into any of the documents executed or delivered at the Closing, for a period of twelve (12) months thereafter:

(a) Formation; Existence. Seller is an urban county government created pursuant to KRS 67A, validly existing, and in good standing under the laws of the State of Kentucky and is qualified to do business in the jurisdiction where the Property is located, to the extent as may be required by applicable law.

(b) Title. Seller represents and warrants to Purchaser that Seller presently has and will have at Closing record title to the Property, and that, at Closing, such title will be free and clear of all liens, encumbrances, covenants, restrictions, rights-of-way, easements, leases, and other matters affecting title, except for the Permitted Exceptions. Seller further represents and warrants to Purchaser that the Property will be transferred to Purchaser free and clear of any management, service, brokerage, or other contractual obligations, other than those disclosed to and approved in writing by Purchaser.

(c) No Assignment or Encumbrance. Seller further covenants and agrees with Purchaser that, from the Effective Date until Closing, Seller will not sell, assign, or convey any right, title, or interest whatsoever in or to the Property, or create or permit to exist any lien, security interest, easement, encumbrance, charge, or condition affecting the Property (other than the Permitted Exceptions) without promptly discharging the same prior to Closing.

(d) No Actions. There are no actions, suits, or proceedings pending or, to the best of Seller's Actual Knowledge, threatened against Seller or otherwise affecting any portion of the Property, at law or in equity, or before or by any federal, state, municipal, or other governmental court, department, commission, board, bureau, agency, or instrumentality, domestic or foreign. Until the Closing Date or sooner termination of this Contract, Seller will not seek any zoning changes for the Property without the prior approval of Purchaser.

(e) Authority. The execution by Seller of this Contract and the consummation by Seller of the sale contemplated hereby have been duly authorized, and do not, and, at the Closing Date, will not, result in a breach of any of the terms or conditions of, or constitute a default under any indenture, agreement, instrument, or obligation to which Seller is a party or by which any portion of the Property is bound. No consent of any lender or any other party is required for Seller to enter into this Contract.

(f) Continued Maintenance. From the Effective Date through the Closing Date, Seller will: (i) continue to maintain the Property in its present condition and to perform all of its obligations under any Leases (as defined below), (ii) not make any material alterations or material improvements to the Property or on the Land, nor demolish any of the Property and (iii) maintain its existing insurance policies for the Property.

(g) Intentionally deleted.

(h) No Agreements. From the Effective Date through the Closing Date, Seller will not enter into or amend any oral or written agreements affecting the Property which might become binding on Purchaser or the Property at or after Closing without Purchaser's written consent.

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(i) Compliance with Laws. To Seller's Actual Knowledge, the Property complies with all applicable laws and ordinances, and the present maintenance, operation and use of the Property does not violate any environmental, zoning, subdivision, building or similar law, ordinance, code, regulation or governmental permit affecting the Property. The Property is not the subject of any outstanding order or notice concerning violation of zoning, subdivision, building or similar law, ordinance, code, regulation or governmental permit and Seller has cured any such order or notice of violation which Seller has received. Seller is not obligated to perform any repairs, restorations, or improvements to the Property pursuant to an agreement with any person, entity or authority, including any tenant, lender, insurance carrier, or government authority.

(j) Environmental.

(1) **"Environmental Requirements"** means any and all existing or future federal, state, regional, local ordinances, codes, rules, regulations, common law, or other requirements of any governmental entities or legislative authorities relating to the protection of human health or the environment or natural resources or exposure to Hazardous Materials, including but not limited to the Comprehensive Environmental Response, Compensation and Liability Act, 42 U.S.C. § 9601 *et seq.*; the Resource Conservation and Recovery Act, 42 U.S.C. § 6901 *et seq.*; the federal Water Pollution Control Act, as amended, 33 U.S.C. § 1251 *et seq.*; the federal Clean Air Act, 42 U.S.C. § 7401 *et seq.*; the federal Emergency Planning and Community Right-To-Know Act, 42 U.S.C. § 11001 *et seq.*; the federal Hazardous Materials Transportation Act, 49 U.S.C. § 5101 *et seq.*; the federal Oil Pollution Act, 33 U.S.C. § 2701 *et seq.*; the federal Insecticide, Fungicide, and Rodenticide Act, Federal Pesticide Act, 7 U.S.C. § 136 *et seq.*; the Federal Endangered Species Act, 16 U.S.C. § 1531, *et seq.*; the federal Toxic Substances Control Act, 15 U.S.C. § 2601 *et seq.*; the Federal Safe Drinking Water Act, 42 U.S.C. § 300f *et seq.*; and the Occupational Safety and Health Act 29 U.S.C. § 651 *et seq.*; all state and local counterparts thereto; and any regulations, policies, permits, or approvals promulgated or issued thereunder, as these laws, rules and regulations were in the past or are currently in effect at the relevant time period. **"Hazardous Materials"** means any hazardous or toxic substance, material, waste, pollutant, or contaminant, whether in solid, semisolid, liquid or gaseous form, including without limitation, asbestos, polychlorinated biphenyls, petroleum, petroleum distillate, petroleum by-products, lead-based paint, microbial growth, mycotoxin, fungus, and any material or substance listed or defined as "hazardous substance," "hazardous waste," "hazardous material," "toxic waste," or "toxic substance" under any Environmental Requirements.

(2) To Seller's Actual Knowledge, during the period that Seller has owned the Property, there is not now, nor has there been, any storage, production, transportation, disposal, recycling, treatment, or release of any Hazardous Materials on or in the Property. Seller has complied with all Environmental Requirements. To Seller's Actual Knowledge, there are no wells, sumps, clarifiers, underground storage tanks, covered surface impoundments, or other sources of Hazardous Materials or contaminants on the Property, or previously located on the Property and subsequently removed.

(3) To Seller's Actual Knowledge, prior to Seller's acquisition of the Property there was no storage, production, transportation, disposal, treatment or release of any Hazardous Materials on or in the Property, including but not limited to any underground storage tank, surface impoundment, lagoon, or other containment facility for the storage of Hazardous Materials, or sumps, clarifiers, or on-site wells.

(4) Intentionally deleted.

(5) To Seller's Actual Knowledge, Seller is not the subject of any outstanding order with or from any governmental authority respecting (i) Environmental Requirements, (ii) Remedial Action, or (iii) any release or threatened release of a Hazardous Material. **"Remedial Action"** means all actions undertaken pursuant to or in accordance with Environmental Requirements to (w) clean up, remove, remediate, treat or in any other way address any Hazardous Material, (x) prevent the release of any Hazardous Material so it does not endanger or threaten to endanger public health or welfare or the indoor or outdoor environment, (y) perform pre-remedial studies

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and investigations or post-remedial monitoring and care, and (z) respond to or correct a condition of noncompliance with Environmental Requirements.

(6) To Seller's Actual Knowledge, Seller has not received any written or oral communication alleging that, with respect to the Property, Seller is in violation of any Environmental Requirement or is otherwise subject to liability under any Environmental Requirement.

(7) To Seller's Actual Knowledge, Seller has provided to Purchaser all audits, assessments, studies, reports, analyses, results of investigations, or other information related to health, safety, or the environment with respect to the Property that have been performed during Seller's ownership of the Property, or which relate to periods prior to Seller's ownership of the Property, in the Seller's current possession.

(8) Intentionally deleted.

(k) Condemnation. There is no pending, nor to Seller's Actual Knowledge threatened, condemnation or similar proceedings affecting the Property.

(l) OFAC Compliance. Seller has not been and will not be a person or entity described by Sec. 1 of the Executive Order (No. 13,224) Blocking Property and Prohibiting Transactions With Persons Who Commit, Threaten to Commit, or Support Terrorism, 66 Fed. Reg. 49,079 (Sept. 24, 2001) and has not been and will not be a person or entity with whom a citizen of the United States is prohibited from engaging in transactions by any trade embargo, economic sanction, or other prohibition of United States law, regulation, or executive order of the President of the United States, and to its Actual Knowledge, has not and will not engage in any dealings or transactions, at any time otherwise associate, with any such persons or entities.

(m) Intentionally deleted.

(n) Personal Property. There is no material personal property owned by Seller and used or associated with the Land.

(o) Documents. The Documents are true, correct, and complete in all material respects. Without limitation thereon, any operating statements to be delivered as part of the Documents are true, correct, and complete in all material respects and have been prepared in accordance with standard accounting practices, consistently applied, and no material adverse change has occurred since the respective dates thereof.

(p) Untrue Statement. None of the representations, warranties, or covenants made by Seller under this Contract contains any untrue statements of material fact or omits a material fact necessary in order to make the statements not misleading.

(q) Assumption of Liabilities. Except for those obligations expressly assumed by Purchaser under the terms of this Contract, Purchaser, by virtue of the purchase of the Property, will not be required to satisfy any obligation of Seller arising prior to the Closing Date. Other than prorations and such obligations so expressly assumed by Purchaser or any liens or other obligations with respect to the Property that result from any action or activities by or on behalf of Purchaser, Seller, after the date of Closing, will pay and discharge any and all liabilities of each and every kind arising out of or by virtue of the possession, ownership or use of the Property prior to the Closing Date.

(r) Taxes and Special Assessments. Seller has not submitted an application for the creation of any special taxing district affecting the Property, or annexation thereby, or inclusion therein. To Seller's Actual Knowledge, Seller has not received notice that any governmental or quasi-governmental agency or authority intends to impose or increase any special or other assessment against the Property, or any part thereof, including assessments

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attributable to revaluations of the Property. To Seller's Actual Knowledge, there is no ongoing appeal with respect to taxes or special assessments on the Property for any year.

(s) No Contractual or Donative Commitments. Seller has not entered into any, and to Seller's Actual Knowledge, there are no contractual or donative commitments relating to the Property to any governmental authority, quasi-governmental authority, utility company, community association, homeowners' association or to any other organization, group, or individual which would impose any obligation binding upon Purchaser to make any contribution or dedication of money (including, without limitation, mitigation fees) or land, or to construct, install or maintain any improvements of a public or private nature on or off the Property (other than impact fees that may arise in connection with Purchaser's development).

(t) Bankruptcy. There is no bankruptcy, insolvency, rearrangement or similar action or proceeding, whether voluntary or involuntary, pending or, to Seller Actual Knowledge, threatened against Seller.

(u) Construction Work. Seller has not entered into any contractual commitments to utilize any particular contractors, subcontractors or labor suppliers to perform construction work at the Property.

(v) Service Contracts. (i) True, correct, and complete copies of the Service Contracts have been delivered to Purchaser, (ii) the Service Contracts are free from default by any party thereto, and (iii) there will be no contracts for services binding upon Purchaser or the Property following Closing except only the Approved Service Contracts expressly approved and assumed by Purchaser pursuant to this Contract.

As used in this Section 6, whenever a representation or warranty is made to the "Seller's Actual Knowledge," or any variation thereof, such representation and warranty refer to the actual knowledge of "Seller's Knowledge Parties" and shall be limited to (a) facts and circumstances within the actual and present knowledge of Seller's Knowledge Parties, and (b) facts and circumstances that were disclosed in any written notice at any time received by Seller's Knowledge Parties. Seller's Knowledge Parties shall mean the knowledge of Craig Bencz and Kevin Atkins ("Seller's Knowledge Parties"). Seller represents and warrants to Purchaser that Seller's Knowledge Parties are the individuals owning an interest in the Property or employed by Seller who have the most knowledge and information concerning the Property.

7. Representations and Warranties of Purchaser. Purchaser hereby represents and warrants to Seller as follows, which representations and warranties contained in this Section are made by Purchaser both as of the Effective Date and as of the Closing Date, and will survive Closing and shall not be deemed to have merged into any of the documents executed or delivered at the Closing, for a period of twelve (12) months after the Closing Date:

(a) Formation; Existence. Purchaser is a limited liability company duly formed, validly existing, and in good standing under the laws of the State of Georgia and is qualified to do business in the jurisdiction where the Property is located, to the extent as may be required by applicable law.

(b) Authority. The execution by Purchaser of this Contract and the consummation by Purchaser of the purchase contemplated hereby have been duly authorized, and do not, and, at the Closing Date, will not, result in a breach of any of the terms or conditions of, or constitute a default under any indenture, agreement, instrument, or obligation to which Purchaser is a party. No consent of any other party is required for Purchaser to enter into this Contract.

(c) Untrue Statement. None of the representations, warranties, or covenants made by Purchaser under this Contract contains any untrue statements of material fact or omits a material fact necessary in order to make the statements not misleading.

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(d) AS-IS, WHERE IS. Except for the express representations and warranties of Seller found in Section 6, Purchaser is acquiring the Property on an "AS IS, WHERE IS" basis, without any representation or warranty of any kind or nature whatsoever, express or implied, and Purchaser acknowledges that no such representations or warranties have been made except as set forth in writing herein. In deciding whether to acquire the Property, Purchaser is relying solely on Purchaser's investigation of the Property.

(e) OFAC Compliance. Purchaser has not been and will not be a person or entity described by Sec. 1 of the Executive Order (No. 13,224) Blocking Property and Prohibiting Transactions With Persons Who Commit, Threaten to Commit, or Support Terrorism, 66 Fed. Reg. 49,079 (Sept. 24, 2001) and has not been and will not be a person or entity with whom a citizen of the United States is prohibited from engaging in transactions by any trade embargo, economic sanction, or other prohibition of United States law, regulation, or executive order of the President of the United States, and to its knowledge, has not and will not engage in any dealings or transactions, at any time otherwise associate, with any such persons or entities.

8. Closing Conditions.

(a) Purchaser's Closing Conditions. The Closing and Purchaser's obligations with respect to the transaction provided for in this Contract are subject to the satisfaction or waiver by Purchaser of the following conditions (collectively, the "**Purchaser Closing Conditions**"):

(1) Representations and Warranties. All representations and warranties of Seller contained herein will be true, accurate, and complete in all material respects at the time of Closing as if made again at such time.

(2) Seller Obligations. Seller will have performed all obligations to be performed by Seller hereunder on or before Closing (or, if earlier, on or before the date set forth in this Contract for such performance) and complied with all Seller's covenants set forth in this Contract.

(3) Condition of Property. At Closing, title to the Property will be free and clear of all liens, encumbrances, covenants, restrictions, rights-of-way, easements, leases, and other matters affecting title, except for the Permitted Exceptions and Title Company will deliver the Title Policy, or Title Company's irrevocable commitment to issue the Title Policy, to Purchaser. At Closing, there shall have been no material, adverse changes in the physical condition of the Property from the Effective Date including, but not limited to, the environmental condition of the Property.

(4) Suits or Proceedings. No action, suit, or proceeding will be pending or threatened before any court, administrative agency, or arbitrator wherein an unfavorable injunction, order, decree, ruling, or charge would: (i) prevent consummation of this Contract; (ii) cause this Contract to be rescinded following consummation; or (iii) adversely affect the right of Purchaser after the Closing Date to own, quietly enjoy, use and control the Property.

(5) Approvals. Purchaser shall have received all Final Project Approvals (defined below) necessary for development of the Property for Purchaser's intended warehouse and distribution use, provided such approvals have been applied for prior to the expiration of the initial Inspection Period.

(b) Failure of Purchaser Closing Condition. If Purchaser determines, in Purchaser's reasonable discretion, that any of the above Purchaser Closing Conditions cannot be met to Purchaser's satisfaction prior to Closing, then Purchaser may terminate this Contract by written notice to Seller, whereupon this Contract will be terminated, Seller will retain the Independent Consideration, and the Escrow Holder will refund the Earnest Money to Purchaser and, provided that Seller is not in default hereunder beyond applicable cure periods, release the Extension Fee on deposit to Seller, and thereafter neither Seller nor Purchaser will have any continuing rights or

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obligations hereunder other than those which survive termination of this Contract as expressly set forth herein. If Seller is in default hereunder beyond applicable cure periods, the Extension Fee shall be refunded to Purchaser. Notwithstanding the foregoing, if any of the Purchaser Closing Conditions cannot be met to Purchaser's satisfaction prior to Closing due to Seller's breach of its obligations or covenants set forth in this Contract, Purchaser shall have the rights and remedies set forth in Section 16(a) below.

(c) Seller's Closing Conditions. Seller's sale of the Property is subject to satisfaction of the following conditions prior to Closing (collectively, the "**Seller Closing Conditions**"):

(i) Representations and Warranties. All representations and warranties of Purchaser contained herein will be true, accurate, and complete in all material respects at the time of Closing as if made again at such time.

(ii) Purchaser Obligations. Purchaser will have performed all obligations to be performed by Purchaser hereunder on or before Closing (or, if earlier, on or before the date set forth in this Contract for such performance).

(d) Failure of Seller Closing Condition. If Seller determines, in Seller's reasonable discretion that any of the above Seller Closing Conditions cannot be met to Seller's satisfaction prior to Closing, then Seller may terminate this Contract by written notice to Purchaser, whereupon this Contract will be terminated, Seller will retain the Independent Consideration, and the Escrow Holder will, provided that Seller is not in default hereunder beyond applicable cure periods, release the Earnest Money and any Extension Fee on deposit to Seller, and thereafter neither Seller nor Purchaser will have any continuing rights or obligations hereunder other than Purchaser's indemnity of Seller as provided in Section 5.

(e) Simultaneous Closing of Adjacent Property. Seller and Purchaser acknowledge and agree that Lexington Equine Medical Group PLLC and Purchaser) have entered into an agreement for the sale and purchase of certain real property (the "**Adjacent Property**") owned by Lexington Equine Medical Group PLLC (the "**Adjacent Property PSA**"). Seller and Purchaser agree that this Contract and the obligations of the parties hereunder are contingent on the closing of the sale and purchase of the Adjacent Property pursuant to the Adjacent Property PSA and that Purchaser shall not be obligated to close on the purchase of the Property hereunder unless and until the sale and purchase of the Adjacent Property is consummated. Purchaser shall have the right to extend or accelerate the Closing Date in the event closing pursuant to the Adjacent Property PSA is so extended or accelerated (except in the event of uncured Purchaser default hereunder that is continuing). Upon reasonable request, Purchaser shall provide Seller with updates regarding the status of the transactions contemplated in the Adjacent Property PSA and reasonable assurances that Purchaser remains capable of performing its obligations under this Contract. Purchaser represents that, as of the Effective Date of this Contract, the timelines for the transaction contemplated herein are substantially aligned with the timeline for the transaction contemplated under the Adjacent Property PSA. Notwithstanding the foregoing, nothing in this Contract shall be deemed to place Purchaser in breach of the Adjacent Property PSA, nor shall any provision of the Adjacent Property PSA be construed to place Purchaser in breach of this Contract.

9. Closing.

(a) The closing ("**Closing**") will take place on a date ("**Closing Date**") selected by Purchaser which is on or before fifteen (15) days following the later of: (i) the expiration of the Inspection Period (as the same may be extended); or (ii) receipt by Purchaser of all Final Project Approvals as may be deemed necessary by Purchaser in connection with its contemplated use and development of the Property as a warehouse and distribution facility, including, but not limited to, building permit, site plan approval, environmental review, permits and approvals related to wetlands or streams, civil engineering approvals and approvals and agreements with utility service providers, unless Purchaser terminates this Contract prior to such date in accordance with this Contract so long as

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the initial applications for such Final Project Approvals are submitted during the Inspection Period. Seller agrees to cooperate with Purchaser and execute such documents reasonably required in connection with the Final Project Approvals. Purchaser acknowledges that it is solely responsible for obtaining, at its own cost, all necessary Approvals. Seller shall not be responsible for any cost or liabilities specifically associated with Purchaser's efforts to obtain such Approvals, except to the extent reasonably consented by Seller. Purchaser shall indemnify and hold harmless Seller from any third-party claims arising solely out of Purchaser's efforts to obtain such Approvals. For purposes of this Contract, and calculation of the Closing Date specifically, "**Final Project Approvals**" shall mean that the agencies having jurisdiction shall have issued final approval of all Approvals on terms and conditions acceptable to Purchaser, and all time periods for appealing, objecting to, or challenging such Approvals shall have expired without the filing or bringing of any such appeal, objection or challenge, or, if such an appeal, objection or challenge shall have been brought, then upon the final resolution thereof in a manner acceptable to Purchaser in Purchaser's commercially reasonable discretion. Purchaser will notify Seller at least five (5) business days in advance of the exact Closing Date. At Closing, Seller shall provide assurances and acknowledgements to Title Company concerning the potential "gap" between Title Company's most recent title insurance examination and the actual recording of the Deed (which may be after the Closing) as may be reasonably requested by Title Company. There shall be no requirement that Seller and Purchaser physically attend Closing, and all funds and documents to be delivered at Closing shall be delivered to Title Company unless the parties hereto mutually agree otherwise.

(b) Intentionally deleted.

10. Seller's Obligations at Closing. At the Closing, Seller will duly execute and deliver to Title Company, at Seller's expense, the following:

(a) Deed. An original special warranty deed in the form attached hereto as **Exhibit D** (the "**Deed**"), duly signed and acknowledged by Seller, which Deed will convey to Purchaser, its designee and/or its assigns good and indefeasible fee simple title to the Property free and clear of all liens, rights-of-way, easements, leases, and other matters affecting title to the Property, except for the Permitted Exceptions.

(b) Title Policy. All documentation required of the Seller for the Title Company to issue the Title Policy to Purchaser (the cost of the premium for such Title Policy to be borne by Purchaser.

(c) Non-Foreign Affidavit. A non-withholding statement in the form of **Exhibit E** attached hereto (the "**Non-Foreign Affidavit**").

(d) Intentionally deleted.

(e) Evidence of Authority. Such documents as may be reasonably required by Title Company evidencing the status and capacity of Seller and the authority of the person or persons who are executing the various documents on behalf of Seller in connection with the sale of the Property.

(f) Intentionally deleted.

(g) Assignment of Personal Property, Service Contracts and Intangible Property. An Assignment of Personal Property, Service Contracts and Intangible Property in the form of **Exhibit G** attached hereto (the "**Assignment of Personal Property, Service Contracts and Intangible Property**");

(h) Originals. Originals of all of the Approved Service Contracts;

(i) Records. Records concerning the income and tenancies of the Property for the 24 months immediately prior to the Closing Date;

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SKY3(j) Intentionally deleted;

(k) Owner's Affidavit. One (1) original Owner's Affidavit in a form acceptable to Title Company to cause Title Company to issue the Title Policy including ALTA Extended Coverage with an ALTA 9.2-06 Endorsement (Restrictions, Encroachments, Minerals - Owner's Policy - Improved Land without any exception for any parties in possession, except for the existing tenants under the Approved Leases and without any exception for any mechanic's liens that may be recorded as a result of any work performed prior to the Closing Date;

(l) Other Documents. Such other documents as Title Company may reasonably require to consummate this transaction; and

(m) Possession. Possession of the Property shall be delivered at Closing. It shall be Seller's responsibility, at Seller's cost, to vacate all tenants occupying the Property prior to Closing, except for tenants occupying the Property pursuant to the Approved Leases. Seller shall remove any garbage, debris, and waste from the Property prior to Closing.

11. Purchaser's Obligations at Closing. At Closing, Purchaser will deliver to Seller, at Purchaser's expense, the following:

(a) Purchase Price. The Purchase Price plus any prorations and Purchaser's share of closing costs as set forth in Section 12 below.

(b) Evidence of Authority. If required by the Title Company, a certificate of Senior Corporate Counsel evidencing the status and capacity of Purchaser and the authority of the person or persons who are executing the various documents on behalf of Purchaser in connection with the purchase of the Property.

(c) Intentionally deleted.

(d) Assignment of Personal Property, Service Contracts and Intangible Property. A counterpart of the Assignment of Personal Property, Service Contracts and Intangible Property duly executed by Purchaser.

(e) Other Documents. Such other documents as Title Company may reasonably require to consummate this transaction.

12. Costs and Adjustments.

(a) Taxes and Closing Costs. Seller shall be entitled to receive any income in respect of the Property and shall be obligated to pay all expenses in respect of the Property for all time periods prior to and including the day prior to the Closing Date. All ad valorem taxes levied or assessed against the Property by applicable taxing authorities, including the current installment for any assessment (special, bond, or otherwise), will be prorated between Purchaser and Seller on a "accrual basis" as of the date of Closing pursuant to the provisions of this Section 12(a). The apportionment of taxes will be upon the basis of the tax rate for the current year of Closing, provided, in the event that the current year's real estate taxes are not available as of the Closing Date, the proration shall be based upon one hundred five percent (105%) of the amount of the most recently available tax bill with Seller responsible for the payment of Taxes up to and including date of Closing, notwithstanding that taxes for the year of Closing may not be assessed until the following year. Such proration and credit at Closing shall be deemed final and not subject to reproration or other adjustment. If the Land is assessed as a part of a larger tax parcel, then taxes will be prorated based on the Land's percentage of the total land area included in the tax parcel; and adjustments in the prorations will be made if necessary upon receipt of the tax statements for the year of Closing, and both parties agree that payment of the amount of such adjustments will be made within thirty (30) days of receipt of such tax statements for the year of Closing. If the Land is assessed as a part of a larger tax parcel, Seller will pay at Closing,

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or deposit in escrow with Title Company, the prorata share of the taxes attributable to that portion of the tax parcel not constituting a part of the Land. Seller represents and warrants that no rollback taxes or other taxes assessed from and after Closing which are attributable to the period prior to Closing due to a change in land use, ownership or otherwise, are applicable to the transactions contemplated herein. If rollback taxes will be assessed, Seller will pay or escrow with Title Company an amount determined by Title Company to be sufficient for payment in full of the rollback taxes assuming a change in use at Closing. Seller and Purchaser will each be responsible for the fees and expenses of their respective attorneys, and Purchaser shall be responsible for all escrow fees charged by Title Company. Seller will pay for the costs of (a) the tax certificates, if any; (b) all documentary and other transfer taxes payable in connection with the recordation of the Deed; and (c) all recording fees for release of any encumbrances. Purchaser will pay for the costs of (x) the premium for the Title Policy, along with any endorsements; (y) the recording fee for the Deed; and (z) the Survey. Any other expenses, charges, and fees of Closing not otherwise specifically allocated herein or incurred by a specific party, will be borne by the Purchaser.

(b) Other Income and Expenses. All other income and ordinary operating expenses for or pertaining to the Property, including rentals, public utility charges, maintenance and service charges, and all other normal operating charges of the Property, will be prorated as of the Closing Date; provided that Purchaser will not be obligated for payments under any management, service, or other contractual agreements affecting the Property and the same will be terminated prior to Closing unless Purchaser expressly elects to assume the same.

(c) Intentionally deleted.

(d) Adjustments. If any adjustments pursuant to this Section 12 are determined to be erroneous, then the party who is entitled to additional monies will invoice the other party for such additional amounts as may be owing, and such amounts will be paid within sixty (60) days from the receipt of any such invoice; provided that no amounts may be so billed following the expiration of one (1) year after the Closing Date, and either party may dispute any such claim.

13. Intentionally deleted.

14. Destruction/Condemnation of Property. If all or any portion of the Property is damaged or destroyed by any casualty or is the subject of a taking or condemnation under eminent domain law after the Effective Date but prior to the Closing Date, Seller will have no obligation to repair or replace any damage or destruction caused by the foregoing, but the following will apply at Closing: (i) in the event of a casualty, Seller will assign the insurance proceeds to Purchaser; and (ii) in the event of a taking, or condemnation, Seller will assign to Purchaser its rights to any condemnation proceeds resulting from such taking. Notwithstanding the foregoing, if such casualty, condemnation, or taking is a Material Event (defined below), then Purchaser may elect to terminate this Contract by written notice to Seller given on or before the Closing Date, and upon such termination, any Earnest Money will be returned to Purchaser, any Extension Fee will be returned to Seller, and the parties will have no further liability or obligation hereunder. As used in this Section, a "**Material Event**" means either of the following: (a) a casualty resulting in damage or destruction to the Property, if the cost to restore the Property to its condition immediately prior to such casualty is reasonably estimated to exceed \$100,000.00; or (b) a casualty, taking, or condemnation which would impede access to the Property, reduce available parking below that required by laws or any applicable agreements affecting the Property, or otherwise impede Purchaser's planned use or development of the Property.

15. Notices. All notices, approvals, consents, requests, or demands required or permitted to be given by either party will be delivered via email only, properly addressed to the email addresses set forth on Addendum 1, except where physical delivery is required by Legal Requirements ("**Required Notice**"). When a notice must be delivered by a deadline set forth in this Contract, notice must be delivered by 5:00 p.m. Pacific Time on the deadline date. For a Required Notice, notice shall be given: (a) personally; (b) by depositing with the United States Postal Service, postage prepaid, by registered or certified mail, return receipt requested; (c) by a nationally-recognized delivery service providing proof of delivery; or (d) by email, provided that, for delivery pursuant to this clause (d), a copy is

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also sent pursuant to either clause (a), (b), or (c) above within two (2) business days. Each party agrees to promptly deliver confirmation of receipt of email notice to the other party, provided failure by a party to acknowledge receipt shall have no bearing on the determination of delivery. Except for email notice, which is deemed delivered at the time it is sent, notice is deemed given upon delivery (or, in the case of delivery via the method described in (b), the earlier of delivery or three (3) days following the date of depositing), or when delivery is refused. If any notice or other communication to be delivered by e-mail attachment as provided above cannot be transmitted because of a problem affecting the receiving party's computer (including, without limitation file size limitations), the notice must be re-sent and the deadline for receiving such notice or other communication shall be extended through the next business day. Either party may change its notice address by giving notice in the manner set forth above. Each party agrees that notices sent to the address(es) shown on Addendum 1 are all of the parties who comprise such party who are entitled to notice under this Contract. The attorneys for any party hereto shall be entitled to provide any notice that a party desires to provide or is required to provide hereunder.

16. Remedies.

(a) If Seller fails to timely comply with all conditions, covenants, and obligations hereunder, or any of the representations and warranties of Seller contained herein are untrue, such failure or misrepresentation will be an event of default by Seller, and Purchaser will not be obligated to consummate Closing and may (i) terminate this Contract by providing written notice of such termination to Seller, whereupon this Contract will be terminated, Seller will retain the Independent Consideration, but the Earnest Money and any Extension Fee will be refunded to Purchaser, and Seller will reimburse Purchaser for its out-of-pocket expenses incurred in connection with this Contract and its due diligence, and thereafter neither Seller nor Purchaser will have any continuing rights or obligations other than those that expressly survive termination hereunder; and/or (ii) exercise any rights or remedies as may be available to Purchaser at law or in equity, including enforcing specific performance of this Contract. Notwithstanding anything to the contrary contained herein, an event of default by Seller will not be deemed to have occurred unless and until Seller has failed to cure within fourteen (14) days of receipt of notice from Purchaser of such default. The requirements of this Section 16(a) shall survive termination of this Contract. Purchaser shall have all rights and remedies available at law or equity in the event any of the representations and warranties of Seller contained in this Contract are found to be untrue after Closing.

(b) IF PURCHASER FAILS TO CLOSE THE TRANSACTION CONTEMPLATED HEREUNDER AS MAY BE REQUIRED PURSUANT TO THE TERMS HEREOF, EXCEPT DUE TO A DEFAULT BY SELLER, SUCH FAILURE WILL BE AN EVENT OF DEFAULT BY PURCHASER ("**PURCHASER DEFAULT**") AND SELLER, AS ITS SOLE AND EXCLUSIVE REMEDY, MAY TERMINATE THIS CONTRACT AND RECEIVE FROM ESCROW HOLDER THE EARNEST MONEY DEPOSITED WITH ESCROW HOLDER AS LIQUIDATED DAMAGES. NOTWITHSTANDING ANYTHING TO THE CONTRARY CONTAINED HEREIN, A PURCHASER DEFAULT WILL NOT BE DEEMED TO HAVE OCCURRED UNLESS AND UNTIL PURCHASER HAS FAILED TO CURE WITHIN 10 DAYS OF RECEIPT OF NOTICE FROM SELLER OF SUCH DEFAULT. THE EARNEST MONEY IS AGREED UPON BY AND BETWEEN SELLER AND PURCHASER AS LIQUIDATED DAMAGES DUE TO THE DIFFICULTY AND INCONVENIENCE OF ASCERTAINING AND MEASURING ACTUAL DAMAGES, AND THE UNCERTAINTY THEREOF, AND NO OTHER DAMAGES, RIGHTS OR REMEDIES WILL IN ANY CASE BE COLLECTIBLE, ENFORCEABLE OR AVAILABLE TO SELLER AGAINST PURCHASER, AND SELLER WILL ACCEPT THE EARNEST MONEY AS SELLER'S TOTAL DAMAGES AND RELIEF, SELLER HEREBY WAIVING ANY OTHER RIGHTS OR REMEDIES TO WHICH IT MAY OTHERWISE BE ENTITLED. THE FOREGOING LIMITATIONS WILL NOT APPLY TO PURCHASER'S INDEMNITIES MADE PURSUANT TO THE CONTRACT. THE REQUIREMENTS OF THIS SECTION 16(B) SHALL SURVIVE TERMINATION OF THIS CONTRACT.

Seller's Initials: 

Purchaser's Initials: 

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17. Confidentiality. Seller and Purchaser will comply with the terms of that certain Nondisclosure Agreement by and between Seller and Purchaser dated November 7, 2024 (the “**NDA**”). Seller will not, without the prior consent of Purchaser, make any public announcement about the purchase and sale transaction contemplated hereby or of any of the terms and conditions hereof, including the Purchase Price, or the results of any inspection, test, survey, or study conducted by Purchaser pursuant to this Contract except what has to be disclosed pursuant to public disclosure laws. Seller will not transmit any of the information contained in this Contract or any document obtained by Seller or Purchaser in connection with this Contract to any third party except in accordance with the terms of the NDA and except what must be disclosed pursuant to public disclosure laws. To the extent allowed by law, Seller shall, upon Seller’s receipt of a public records request for disclosure of any documents related to this transaction, (i) provide Purchaser notice of such public records request sufficient to allow Purchaser to seek a protective order or other appropriate remedy and (ii) disclose only such information as is required by applicable law (“**Seller’s Disclosure Notice**”). Purchaser hereby acknowledges that the Kentucky Open Records Act, KRS 61.870 et seq., requires Seller to notify a requestor in writing within five (5) business days of its decision to comply with the request. Purchaser understands that Seller may reasonably rely on Purchaser’s direction regarding the disclosure of records related to the transactions contemplated herein. To facilitate compliance, Purchaser agrees to use commercially reasonable efforts to respond within five (5) business days following Purchaser’s confirmed receipt of Seller’s Disclosure Notice. Purchaser’s failure to respond within such five (5) business day period, or Purchaser’s express approval of disclosure, shall be deemed a waiver of any objection solely with respect to the specific records request at issue. For the avoidance of doubt, any such deemed waiver shall be deemed a waiver of any rights under this Section 17 or Section 22(i) only as to the specific records approved by Purchaser for disclosure, or those specific records for which the Purchaser failed to respond prior to production. The covenants set forth in this Section 17 shall survive the termination of this Contract or Closing.

18. Exclusivity. Between the Effective Date and the Closing Date (or earlier termination of this Contract as provided herein), Seller will not negotiate, or enter into, any agreement pertaining to the sale, exchange, lease, or transfer of all or any portion of the Property to any person or entity other than Purchaser or its assigns.

19. Option to Repurchase in the Event Purchaser Fails to Construct. The parties agree that the Property is being sold to the Purchaser in furtherance of economic development in Fayette County. Therefore if Construction Commencement (as hereinafter defined) has not occurred on the Property within five (5) years of the Closing Date, and such failure continues for a period of one hundred eighty (180) days after Purchaser’s receipt of written notice thereof from Seller (subject to extension due to force majeure delays, including jurisdictional approval or permitting delays), Seller shall have the option, but not the obligation, to purchase the Property from Purchaser, free and clear of any additional liens and encumbrances, for no less than one hundred three percent (103%) of the Purchase Price. For the avoidance of doubt, Purchaser shall be deemed to have begun construction, as required by this Section 19, (i) commencement of infrastructure improvements on the Property, which may include, but is not limited to, the commencement of construction of new roadways or modifications to existing roadways, installation, alteration, or extension of electrical, water, sewer, fiber optic, and other utility connections intended to serve the Property and/or (ii) commencing on-site construction activities such as grading, landscaping, soil stabilization, or drainage (collectively, “**Construction Commencement**”). Upon such Construction Commencement, this Section 19, in its entirety, shall automatically be rendered null and void and have no further force or effect with respect to the Property without the recordation of any further documentation releasing the site from the encumbrance of the repurchase right; provided, however, upon receipt of Purchaser’s written request therefor, Seller shall sign and acknowledge an instrument (in recordable form) affirmatively releasing the building site from the encumbrance of the repurchase right (the “**Memorandum of Release**”), which Memorandum of Release may be recorded (at no cost or expense to Seller) in the official real property records.

20. Assignment. Purchaser may, at its option and at any time during the term of this Contract, assign this Contract without the consent of Seller, provided that any such assignment is for an end use that is compliant with applicable laws, regulations, codes and/or covenants governing the Property including, without limitation, the design guidelines applicable to the Property under the authority of and promulgated by the University of Kentucky.

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21. Escrow Instructions. The terms of this Contract shall serve as instructions to the Title Company and the Escrow Holder. As provided in Section 3(A) of this Contract, Purchaser will deposit the Earnest Money with the Title Company. The Earnest Money shall then be released from the Title Company to the Escrow Holder within three (3) business days, who shall hold said funds in a separate and restricted fund pending Closing. At Closing, the Escrow Holder shall apply the Earnest Money to the Purchase Price. Otherwise, if Closing does not occur and the Contract is terminated, the Escrow Holder shall (a) comply with the requirements of this Contract regarding the disbursement of Earnest Money, Independent Consideration, and any Extension Fee and (b) shall provide notice to both parties prior to disbursement. Each party shall have five (5) business days, after the notice is given, to file a written objection to the disbursement. If the Escrow Holder does not receive a written objection from the other party to the proposed payment within five (5) business days after the giving of such notice, the Escrow Holder is hereby authorized to make such payment. If the Escrow Holder receives such written objection within such five (5) business day period, the Escrow Holder shall continue to hold such amount until otherwise directed by mutually agreed upon written instructions from the parties to this Contract or from an order of a court of competent jurisdiction, and Escrow Holder agrees to deposit the Earnest Money in a non-interest-bearing account and to hold and disburse the Earnest Money, and any interest earned thereon, as provided herein. Seller and Purchaser shall execute and deliver to Title Company any additional or supplementary instructions as may be necessary to implement the terms of this Contract and close the transactions contemplated hereby, provided such instructions are consistent with and merely supplement this Contract and shall not in any way modify, amend or supersede this Contract. Such supplementary instructions, together with the escrow instructions set forth in this Contract, as they may be amended from time to time by the parties, shall collectively be referred to as the "**Escrow Instructions.**" The Escrow Instructions may be amended and supplemented by such standard terms and provisions as the Title Company may request the parties hereto to execute; provided, however, that the parties hereto and Title Company acknowledge and agree that in the event of a conflict between any provision of such standard terms and provisions supplied by the Title Company and the Escrow Instructions, the Escrow Instructions shall prevail. After the expiration of the Inspection Period, if either party makes a written demand upon Title Company for payment of the Earnest Money, Title Company shall give written notice to the other party of such demand. However, Title Company shall have the right at any time to deposit the Earnest Money with a court of competent jurisdiction in the state in which the Property is located. Title Company shall give written notice of such deposit to Seller and Purchaser. Upon such deposit, Title Company shall be relieved and discharged of all further obligations and responsibilities hereunder.

22. Miscellaneous.

(a) Interpretation and Applicable Law. This Contract will be construed and interpreted in accordance with the laws of the state where the Property is located, and the jurisdiction and venue with respect to any disputes arising hereunder will be proper only in the city or county in which the Property is located. Where required for proper interpretation, words in the singular will include the plural; the masculine gender will include the neuter and the feminine, and vice versa. The terms "successors and assigns" will include the heirs, administrators, executors, successors and permitted assigns, as applicable, of any party hereto. Time is of the essence in this Contract in all respects.

(b) Amendment. This Contract may not be modified or amended, except by an agreement in writing signed by Seller and Purchaser. Each party may waive any of the Contract's conditions or obligations of the other party, but any such waiver will be effective only if in writing and signed by the party waiving such conditions and obligations.

(c) Intentionally deleted.

(d) Construction. Headings at the beginning of each paragraph and subparagraph are solely for the convenience of the parties and are not a part of the Contract. Whenever required by the context of this Contract, the singular shall include the plural and the masculine shall include the feminine and vice versa. The words

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"include" and "including", and words of similar import, shall be deemed to be followed by the words "without limitation." This Contract shall not be construed as if it had been prepared by one of the parties, but rather as if both parties had prepared the same. Unless otherwise indicated, all references to paragraphs and subparagraphs are to this Contract. All exhibits referred to in this Contract are attached and incorporated by this reference. Unless otherwise specified, in computing any period of time described herein, the day of the act or event upon which the designated period of time begins to run is not to be included and the last day of the period so computed is to be included, unless such last day is not a business day, in which event the last day of the period so computed shall be the next succeeding business day. For purposes of this Contract, the term "**business day**" shall mean any day other than Saturday, Sunday, or any day upon which banks in the state where the Property is located are required or permitted to be closed.

(e) Entire Agreement. This Contract (and the items to be furnished in accordance herewith) constitutes the entire agreement between the parties pertaining to the subject matter hereof and supersedes all prior and contemporaneous agreements and understandings of the parties in connection therewith. No representation, warranty, covenant, agreement, or condition not expressed in this Contract will be binding upon the parties hereto or will affect or be effective to interpret, change or restrict this Contract.

(f) Multiple Originals and Counterparts; Electronic Documents. This Contract may be executed in any number of copies and counterparts, each of which will be deemed an original and all of which counterparts together will constitute one agreement with the same effect as if the parties had signed the same signature page. Counterparts may be delivered via facsimile, electronic mail (including pdf or any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docusign.com) or other transmission method and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes.

(g) Real Estate Commission. Except for KBC Advisors, LLC, Cypress Property Group, and Cushman and Wakefield (collectively, the "**Brokers**"), each party represents and warrants to the other that no broker or finder is connected with or has been engaged by it in connection with any of the transactions contemplated by this Contract. Each Broker shall be paid solely by the party contracting with said broker. In the event of a claim for any other broker's or finder's fee or commissions in connection herewith, each party will, to the extent permitted by law and without waiving the defense of sovereign immunity for claims brought by third parties, indemnify the other against any such claims made based upon any act, statement, or agreement alleged to have been made by the indemnifying party.

(g) Legal Holidays. Notwithstanding anything herein to the contrary, if the final date of any period, any date of performance or any deadline date which is set forth in this Contract falls on a Saturday, Sunday, or federal legal holiday, then such date will be extended to the next following date which is not a Saturday, Sunday, or federal legal holiday.

(h) Binding Effect. This Contract will be binding upon and will inure to the benefit of the parties hereto and their successors and assigns.

(i) Waiver of Consequential Damages. Notwithstanding any provision in this Contract to the contrary, neither party will be liable to the other party for consequential damages, such as lost profits or interruption of the other party's business, except that this sentence will not apply to Seller's breach of its confidentiality obligations under this Contract.

(k) Waiver of Jury Trial. TO THE EXTENT PERMITTED UNDER APPLICABLE LAW, EACH OF SELLER AND PURCHASER KNOWINGLY, INTENTIONALLY AND VOLUNTARILY WAIVE ANY RIGHT TO TRIAL BY JURY OR TO HAVE A JURY PARTICIPATE IN RESOLVING ANY DISPUTE, WHETHER SOUNDING IN CONTRACT, TORT, OR OTHERWISE, BETWEEN SELLER AND PURCHASER

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ARISING OUT OF THIS CONTRACT OR ANY OTHER INSTRUMENT, DOCUMENT, OR AGREEMENT EXECUTED OR DELIVERED IN CONNECTION HERewith OR THE TRANSACTIONS RELATED HERETO.

(l) Anti-Corruption. Seller will not knowingly permit anyone to pay bribes to anyone for any reason, whether in dealings with governments or the private sector, or otherwise violate any applicable anti-corruption laws in performing under this Contract. Seller will maintain true, accurate, and complete books and records concerning any payments made to another party by Seller under this Contract, including on behalf of Purchaser. Purchaser and its designated representative may inspect Seller's books and records to verify such payments and for compliance with this Section.

(m) Effective Date. All references in this Contract to the "**Effective Date**" will mean the later of the dates upon which Seller and Purchaser execute this Contract as set forth on the signature page below.

(n) No Waiver. Notwithstanding any law, usage, or custom to the contrary, each party may enforce this Contract in strict accordance with its terms; and the failure to do so will not create a custom contrary to the specific terms, provisions and covenants of this Contract or modify the same, and a waiver by either party to enforce its rights pursuant to this Contract will not be a waiver of such party's rights in connection with any subsequent default. Except as provided herein, no waiver by either party will be deemed to have been made unless expressed in writing and signed by such party.

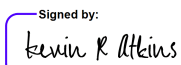
(o) Design Guidelines. Purchaser acknowledges and represents that it is aware of certain design guidelines imposed and governed by the University of Kentucky as applicable to the Property. Purchaser further acknowledges that any development, construction, or improvements on the Property shall be subject to compliance with such guidelines, and Purchaser agrees to take all necessary steps to ensure adherence to the same, to the extent required by the University of Kentucky or any governing authority.

[Signature Page to Follow]

EXECUTED to be effective as of the Effective Date.

SELLER:

LEXINGTON-FAYETTE URBAN COUNTY
GOVERNMENT,
an urban county government of the Commonwealth
of Kentucky

By: 
Name: Kevin R Atkins
Title: Chief Development Officer
Date Signed: November 10, 2025

PURCHASER:

AMAZON.COM SERVICES LLC, a Delaware
limited liability

By: 
Name: Trace Blethen
Title: Authorized Signatory
Date Signed: November 5, 2025

**RECEIPT OF ONE (1) EXECUTED
COUNTERPART OF THIS CONTRACT IS
HEREBY ACKNOWLEDGED:**

TITLE COMPANY:

Chicago Title Insurance Company

By: _____
Name: _____
Title: _____
Date Signed: _____



ADDENDUM 1

NOTICE ADDRESSES

PURCHASER'S NOTICE ADDRESS:

Email Notice:

jemitchell@bakerlaw.com; kmbag@amazon.com

With copies to:

naops-propmgmt@amazon.com;
opsrelegalnotice@amazon.com; and
na-realestate@amazon.com

Required Notice:

c/o Amazon.com, Inc.
Attention: Real Estate Manager (NA Ops: SKY3)
Attention: General Counsel (Real Estate (NA Ops): SKY3)
Attention: NA Ops Asset Management: SKY3)

Each with an address of:

410 Terry Ave. N
Seattle, WA 98109-5210
Telephone: (206) 266-1000

With copies to:

naops-propmgmt@amazon.com; opsrelegalnotice@amazon.com
na-realestate@amazon.com; naops-rent@amazon.com

using the subject line—Re: SKY3, and including the following in the subject or email body:

- site's state or country;
- reason for the notice (e.g., default, cease & desist, bribery or anti-corruption).

SELLER'S NOTICE ADDRESS:

Email Notice:

katkins@lexingtonky.gov
cbencz@lexingtonky.gov
ethompson@lexingtonky.gov
tholskey@lexingtonky.gov
dbarberi@lexingtonky.gov

Required Notice:

Address:

Lexington-Fayette Urban County Government
C/O Chief Development Officer



200 E Main Street, Lexington, KY 40507

With copy to:

C/O Commissioner of Law
200 E. Main Street, 11th Floor, Lexington, KY 40507

C/O Craig Bencz
200 E. Main Street, Lexington, KY 40507

With copies to:

katkins@lexingtonky.gov
cbencz@lexingtonky.gov
ethompson@lexingtonky.gov
tholskey@lexingtonky.gov
dbarberi@lexingtonky.gov

using the subject line—Re: SKY3 (ADD ADDRESS) and including the following in the subject or email body:

- reason for the notice (e.g., default, cease & desist, bribery or anti-corruption), citing specific section and subsection (if the latter is applicable)The amount of time provided in the Contract to cure

Addendum 1

Error! Unknown document property name.



ADDENDUM 3 TO CONTRACT

Not used.



EXHIBIT A

LEGAL DESCRIPTION

Being all of Lot 23 and Lot 31 of the Coldstream Research Campus, Unit 4, to the City of Lexington, Fayette County, Kentucky, as shown by the Final Record Plat of the Coldstream Research Campus, Unit 4, of record in Plat Cabinet L, Slide 794, in the Fayette County Clerk's Office.

Being the same property conveyed to Lexington-Fayette Urban County, Government by Deed dated January 3, 2019 and of record in Deed Book 3639, Page 293, in the Office of the Clerk of Fayette County, Kentucky.

Exhibit B

Error! Unknown document property name.



EXHIBIT B

Not used.

Error! Unknown document property name.

Exhibit B



EXHIBIT C

Not used.



EXHIBIT D

FORM OF SPECIAL WARRANTY DEED

Send Tax Bills to:

SPECIAL WARRANTY DEED

This Deed is made and entered into as of the _____ day of _____, _____, by and between _____, having a mailing address of _____ ("Grantor"), and _____, having a mailing address of _____ ("Grantee");

WITNESSETH:

Grantor does hereby grant and convey to _____, with covenant of SPECIAL WARRANTY, the certain real estate described on the attached Exhibit A (the "Property").

To have and to hold the Property, together with all appurtenances and privileges thereto belonging, to the Grantee, in fee simple, its successors and assigns forever.

Grantor covenants (a) lawful seisin of the Property, (b) full right and power to convey same, and (c) that the Property is free and clear of the claims of all persons claiming by or through the Grantor (but not otherwise), except for (i) easements, conditions, reservations and restrictions of record; (ii) zoning, building and other laws, codes and ordinances; and (iii) ad valorem taxes and assessments which are not yet due and payable.

The consideration being paid for the Property is \$_____.

Pursuant to KRS 382.135, Grantor and Grantee certify under oath that the consideration being paid for the Property is \$_____. Grantee executes this Deed for the sole purpose of making this statement as to the consideration.

The conveyance was authorized by Resolution 278-2025, passed by the Lexington-Fayette Urban County Council on June 12, 2025.

IN WITNESS WHEREOF, the Grantor, _____ (Company Name) by _____ (Name and Title) and the Grantee, _____ (Company Name) by _____ (Name and Title), have hereunto set their hands as of the day and year first written above.

GRANTOR:

_____(Company Name)

By:_____
Authorized Signer Name and Title

STATE OF _____)
) SS:
COUNTY OF _____)

The foregoing instrument, including the statement regarding consideration, was subscribed, sworn to and acknowledged before me this _____ day of _____, by _____ (Company Name) by _____ (Name and Title), on behalf of such _____ (Type of Company, i.e., limited liability company, corporation, limited partnership).

Notary Public
Printed Name:_____
Notary Registration No._____
My Commission Expires:_____



GRANTEE:

Lexington-Fayette Urban County Government

By: _____
Linda Gorton, Mayor

STATE OF _____)
) SS:
COUNTY OF _____)

The foregoing instrument, including the statement regarding consideration, was subscribed, sworn to and acknowledged before me this _____ day of _____, _____ by Lexington-Fayette Urban County Government by Linda Gorton, Mayor, on behalf of such urban county government.

Notary Public
Printed Name: _____
Notary Registration No. _____
My Commission Expires: _____

This Instrument Prepared By:



EXHIBIT A

Error! Unknown document property name.

Exhibit C



EXHIBIT E

**FORM OF CERTIFICATE OF TRANSFEROR
OTHER THAN AN INDIVIDUAL
(FIRPTA Affidavit)**

Section 1445 of the Internal Revenue Code of 1986 (the "**Code**") provides that a transferee of a U.S. real property interest must withhold tax if the transferor is a foreign person. For U.S. tax purposes (including Section 1445 of the Code), the owner of a disregarded entity (which has legal title to a U.S. real property interest under local law) will be the transferor of the property and not the disregarded entity. **[INSERT IF SELLER IS A SINGLE-MEMBER DISREGARDED LLC: [INSERT NAME OF SELLER ENTITY], a _____ is a disregarded entity whose sole owner is [_____, [a Delaware limited liability company] ("Transferor"). To inform _____, a _____, the transferee of certain real property located in _____ County, _____ that withholding of tax is not required upon the disposition of such U.S. real property interest by [INSERT IF SELLER IS NOT A SINGLE-MEMBER DISREGARDED LLC: the undersigned ("Transferor") [INSERT IF SELLER IS A SINGLE-MEMBER DISREGARDED LLC: [INSERT NAME OF SELLER ENTITY], a _____, whose sole owner is Transferor,] the undersigned hereby certifies the following on behalf of Transferor:**

1. Transferor is not a foreign corporation, foreign partnership, foreign trust, or foreign estate (as those terms are defined in the Code and the regulations promulgated thereunder);
2. Transferor's U.S. employer identification number is _____;
3. Transferor's office address is: _____; and
4. Transferor is not a disregarded entity as defined in §1.1445-2(b)(2)(iii).

Transferor understands that this certification may be disclosed to the Internal Revenue Service by transferee and that any false statement contained herein could be punished by fine, imprisonment, or both.

Under penalty of perjury, I declare that I have examined this certificate and to the best of my knowledge and belief it is true, correct and complete, and I further declare that I have authority to sign this document on behalf of Transferor.

Date: _____, 20____

_____,
a _____

By: _____
Name: _____
Title: _____



EXHIBIT F

Not used.

Exhibit F



EXHIBIT G**FORM OF ASSIGNMENT OF
PERSONAL PROPERTY, SERVICE CONTRACTS AND INTANGIBLE PROPERTY**

THIS ASSIGNMENT OF PERSONAL PROPERTY, SERVICE CONTRACTS AND INTANGIBLE PROPERTY (this "**Assignment**") is made and entered into as of this ____ day of _____, 20__ (the "**Effective Date**") by _____, a _____ ("**Assignor**"), and [_____] a _____ ("**Assignee**") who agree as follows.

FOR GOOD AND VALUABLE CONSIDERATION, the receipt and sufficiency of which are hereby acknowledged by Assignor and Assignee, effective as of the Effective Date, Assignor hereby assigns and transfers unto Assignee all of its right, title, claim and interest, if any, in and under:

(A) The "Personal Property" (as defined in that certain Purchase Agreement and Contract dated as of _____, 20__ between Assignor and [Assignee] (the "**Purchase Agreement**"));

(B) the "Approved Service Contracts" (as defined in the Purchase Agreement) listed in Schedule 1 attached hereto; and

(C) any other "Intangible Property" (as defined in the Purchase Agreement).

ASSIGNOR AND ASSIGNEE FURTHER HEREBY AGREE AS FOLLOWS:

1. As of the Effective Date, Assignee hereby assumes and agrees to perform all of Assignor's obligations under the Service Contracts and Intangible Property, to the extent the same arise and accrue on or after the Effective Date. Assignor shall continue to be responsible for all obligations under the Service Contracts and Intangible Property arising or accruing prior to the Effective Date.

2. This Assignment shall be binding on and inure to the benefit of the parties hereto, their heirs, executors, administrators, successors in interest and assigns.

3. This Assignment shall be governed by and construed in accordance with the laws of the State of [_____].

4. This Assignment may be executed in any number of copies and counterparts, each of which will be deemed an original and all of which counterparts together will constitute one agreement with the same effect as if the parties had signed the same signature page. This Assignment and related documents may be executed by electronic copy, including DocuSign, unless otherwise specifically provided for herein or if an original is required by local custom or law.

[Signature page follows]

IN WITNESS WHEREOF, Assignor and Assignee have executed this Assignment the Effective Date.

ASSIGNOR:

_____,
a _____

By: _____
Name: _____
Title: _____

ASSIGNEE:

_____,
a _____

By: _____
Name: _____
Title: _____



**Schedule 1 to
Assignment of
Personal Property, Service Contracts and Intangible Property**

Schedule of Service Contracts

[Insert list of Approved Service Contracts]

EXHIBIT H

Not used.

4909-0678-4116, v. 2

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Exhibit H

